

objective of withholding these facts pending the trial. That objective is contrary to the spirit and letter of the discovery statutes.” (*Id.* at p. 199.)

In this case, Plaintiff has established good cause to be entitled to inspect any surveillance materials Defendant may have obtained.

Plaintiff should be permitted to inspect the surveillance materials in order to “assess the underlying attributes of the footage ..., whether the person depicted on the video is Plaintiff, or whether the surveillance was altered in any way – the same applies to any reports or photographs. Plaintiff must also be able to explore the foundation and authenticity of the reports, photographs, and videos. In addition, without the surveillance materials it makes it nearly impossible to meaningfully depose the investigator about his surveillance methodology and what the investigator captured on the video without being able to review the reports or video footage beforehand.”

Thus, the Court finds the surveillance materials are not protected from discovery under the work product doctrine, and it is not persuaded by Defendant’s contention that his production of a privilege log is sufficient. However, if Defendant were to stipulate to the video footage being excluded at trial (if for example, the footage appeared more favorable to the plaintiff), then good cause would be lacking and it would not be subject to production.

The Court also rejects Defendant’s contention that the term “investigative reports” is vague on its face, as Defendant’s own response to request for production no. 52 shows he understood “investigative reports” to refer to any surveillance investigation Defendant may have conducted on Plaintiff.

Defendant also contends his response to request no. 51 was code-compliant, because “the mere fact that defendant has disclosed that sub rosa on plaintiff was attempted, does not mean it was successful. If defendant indeed had sub rosa videos of plaintiff, defendant would have identified such in his privilege log.”

While Defendant seems to concede that he has no surveillance videos of Plaintiff, both his response to discovery, and his Opposition, play coy as to this point. Reviewing his responses to request for production nos. 50-52 together, it appears as if Defendant is in possession of the fruits of his surveillance investigation, yet his responses to request for production nos. 50-52 make it unclear what those materials might be. Defendant’s

responses should be more complete and straightforward so that there is no ambiguity or confusion as to what Defendant may or may not possess.

The Court **GRANTS** the motion as to request for production nos. 50-52.

Request for Production nos. 53-54

Plaintiff seeks the production of the medical records pertaining to Defendant’s kidney removal (request nos. 53-54). In turn, Defendant argues he has an absolute right to privacy in the identity of his medical providers and medical records. He further contends said records are irrelevant, as he has not placed his medical history into controversy, and he has not waived his right to privacy.

Even where information may be highly relevant and non-privileged, it may still be shielded from discovery if its disclosure would impair a person’s inalienable right of privacy, as guaranteed by both the United States and California Constitutions. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856; *Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 370.)

However, this privilege is not absolute. In each case, the court must carefully balance the right of privacy against the need for discovery; in some cases, a simple balancing test is sufficient while, in others, a compelling interest must be shown. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 34-35; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557 [disapproving cases that required a party seeking discovery of private information to always establish compelling interest or need, without regard to the other considerations articulated in *Hill*].) When the right to discovery conflicts with a privilege, the court “must balance the right of civil litigants to discover relevant facts against the privacy interests of persons subject to discovery.” (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 842.)

As discussed attendant to the Motion to Compel Further Responses to Special Interrogatory no. 113, Defendant’s prior kidney removal procedure is relevant because one of Plaintiff’s theories is that the prior kidney removal rendered it more likely alcohol would linger in Defendant’s bloodstream for a longer period of time, such that his decision to operate a vehicle after consuming alcoholic beverages was oppressive, fraudulent, or malicious, and that such conduct warrants the imposition of punitive damages.

		While Defendant has not himself placed his medical history, or his medical condition, at issue, a compelling interest exists to warrant discovery of this information. Namely, Plaintiff is entitled to conduct discovery on the issue of whether Defendant's prior kidney removal caused, or contributed to, this accident. In his Opposition, Defendant argues this discovery is nothing more than a fishing expedition, as there was no evidence Defendant was even intoxicated at the time of the accident. However, the point of discovery is to reasonably assist the parties with evaluating the case, preparing the trial, and with facilitating settlement. Defendant's position would prevent Plaintiff from doing so. Defendant also argues, rather than obtaining these medical records, Plaintiff can merely ask Defendant whether, after his surgery, he was ever warned to not drive after drinking. However, Plaintiff is entitled to conduct discovery, within the bounds of the Discovery Act, as he sees fit, and his ability to obtain information regarding Defendant's prior kidney removal should not be as limited as Defendant advocates for. While the parties disagree whether it will eventually be necessary to have the physician who performed the kidney removal testify at trial, such arguments are beyond the point. At this juncture, the Court finds Plaintiff has established a compelling interest to be entitled to Defendant's medical records regarding his prior kidney removal. The Court grants the Motion to Compel Further Responses to Request for Production nos. 53 and 54. <u>Sanctions</u> Under the Code of Civil Procedure, monetary sanctions against the party who unsuccessfully makes or opposes a motion to compel is mandatory, unless the Court finds the party subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).) The Court finds substantial justification for the opposition, and thus declines to issue sanctions. Moving party to give notice.
5	Nichols vs Pacifica Medical towers	1. <u>Motion to Compel Answers to Form Interrogatories</u>